

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

JOINT MOTION TO AMEND SCHEDULING ORDER

Pursuant to 46 CFR § 502.141(l) and 46 CFR § 502.71 of the Federal Maritime Commission's Rules of Practice and Procedure, the Complainant SEAFAIR USA LLC ("SeaFair" or "Complainant") and Respondents STERLING CONTAINER LINE LIMITED and ATLANTIC FORWARDING LTD. (together with Sterling, the "Respondents", and jointly with SeaFair, the "Parties"), hereby submit their joint motion to amend the scheduling order dated January 18, 2023 ("Scheduling Order").

I. BACKGROUND

The Scheduling Order called for the Parties to serve all discovery requests by April 25, 2023. Respondents served their joint initial discovery requests on February 17, 2023. Complainant served its responses on April 04, 2023, after requesting an extension on March 03, 2023, that was granted by the honorable Administrative Law Judge, and a brief 12-hour extension on April 03, 2023, that was granted by Respondents' counsel. Complainant served its initial discovery requests on Respondents on March 10, 2023. However, due to staff changes

within Respondents' entities and the breadth of requests propounded by Complainant, Respondents requested a twenty-one (21) day extension to respond to Complainant's discovery requests. Complainant agreed to a fourteen (14) day extension. Respondents served their responses to the Requests for Admission and Interrogatories on April 24, 2023. Even with the extension, Respondents have yet to submit their responses to Complainant's Requests for Production, and neither party has had sufficient time to review the other parties' responses to determine whether additional discovery requests are necessary.

Counsel for the Parties have consulted in good faith and mutually agreed to extend the deadline to serve discovery requests to May 01, 2023, on the condition that Respondents serve their responses to Complainant's Requests for Production by 11:59 p.m. on April 25, 2023. The only other deadline on the Scheduling Order that the Parties foresee will be altered by this extension is the deadline to complete discovery, which will be modified to June 01, 2023, thirty-one (31) days after the deadline to serve discovery requests. Mediation is tentatively scheduled for June 16, 2023, and all discovery will have been completed by then.

II. GOOD CAUSE

The Parties bring this motion for good cause. The documentation relating to the transactions between the Parties is extensive and requires time to carefully assemble and to review. Also, since parties are in the process of scheduling mediation to take place on or around June 16, 2023, allowing the extension will give parties the chance to exchange documents and facilitate mediation. The granting of the motion to amend the Scheduling Order to allow five (5) more days for production and additional discovery requests will make a more efficient and just resolution to this action possible.

III. PROPOSED CHANGE TO SCHEDULING ORDER

The Parties propose the following alterations to the Scheduling Order:

Event	Current Deadline	Proposed New Deadline
Last day to serve discovery requests	April 25, 2023	May 01, 2023
Depositions completed	May 24, 2023	<i>unchanged</i>
Close of all discovery	May 25, 2023	June 01, 2023
Complainant's brief, proposed findings of fact, and appendix.	June 27, 2023	<i>unchanged</i>
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	July 26, 2023	<i>unchanged</i>
Complainant's reply brief and responses to proposed findings of fact.	August 10, 2023	<i>unchanged</i>

The motion does not seek an extension of other deadlines in the current Scheduling Order and will not delay the proceeding.

The Parties believe good cause exists for granting the instant motion to amend the Scheduling Order and respectfully request that the presiding officer extend the two deadlines cited herein. as shown in the table above.

Date: April 25, 2023

Respectfully Submitted,

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Counsel for Complainant

*Counsel for Respondents Atlantic Forwarding Ltd.
and Sterling Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of April 2023, the foregoing Joint Status Report was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

/s/ Shanshan Liang
Shanshan Liang, Esq.